

August 21, 2026
Dept. 9
Civil Tentative Rulings

6.	26CV1706	BRENDA BOSWELL ET AL VS. NEWREZ LLC
LIS PENDENS		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 4, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 21, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Plaintiffs, Brenda Boswell and Bryon Boswell (collectively "Plaintiffs"), seek leave to record lis pendens. Concurrently filed with their motion is a memorandum of points and authorities, joint declaration, and proposed order granting Plaintiffs leave to record a Notice of Pendency of Action with the El Dorado County Recorder. Critically absent is the proposed Notice of Pendency of Action (Lis Pendens).

On June 18, 2026, Plaintiffs filed a Complaint for: (1) Violation of California Civil Code Section 2923.6; (2) Violation of California Civil Code Section 2923.7; (3) Violation of California Civil Code Section 2924.9; (4) Violation of California Civil Code Section 2924.10; (5) Violation of California Civil Code Section 2924.11; (6) Promissory Estoppel; (7) Breach of Contract; (8) Breach of the Implied Covenant of Good Faith and Fair Dealing; (9) Negligent Misrepresentation; (10) Fraudulent Misrepresentation; (11) Promissory Fraud / False Promise; (12) Fraudulent Concealment; (13) Violation of the Rosenthal Fair Debt Collection Practices Act, California Civil Code Section 1788 et seq.; (14) Violation of California Business and Professions Code Section 17200 et seq.; (15) Breach of Fiduciary Duty; (16) Elder Abuse and Financial Abuse of an Elder Pursuant to California Welfare and Institutions Code Section 15600 et seq.; (17) Accounting; (18) Attempted Wrongful Foreclosure; and (19) Declaratory Relief.

A party to an action who asserts a real property claim may record a notice of pendency of action in which that real property claim is alleged. The notice may be recorded in the office of the recorder of each county in which all or part of the real property is situated. **The notice shall contain the names of all parties to the action and a description of the property affected by the action.** Code of Civil Procedure § 405.20 (emphasis added).

An attorney of record in an action may sign a notice of pendency of action. Alternatively, **a judge of the court in which an action that includes a real property claim is pending may, upon request of a party thereto, approve a notice of pendency action.** A notice of pendency of action shall not be recorded unless (a) it has been signed by the attorney of record, (b) **it is signed by a party acting in propria persona and approved by a judge as provided in this section,** or (c) the action is subject to Section 405.6. Code of Civil Procedure § 405.21 (emphasis added).

Code of Civil Procedure § 405.4 defines "real property claims" as the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of,

specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility.

There has been no definitive interpretation of the phrase “affect title to or right of possession.” On the one hand, it is clear that an action that affects ownership of the disputed property is a proper action for a lis pendens notice. (*Nash v. Superior Court* (1978) 86 Cal.App.3d 690, 692, 150 Cal.Rptr. 394, overruled on unrelated grounds in *Malcolm v. Superior Court, supra*, 29 Cal.3d at p. 528, fn. 5, 174 Cal.Rptr. 694, 629 P.2d 495 [action for specific performance of an agreement for sale of residential property].) It has also been held that a lis pendens is proper in an action that would affect or impair the owner’s right of possession of real property. (*Kendall-Brief Co. v. Superior Court, supra*, 60 Cal.App.3d 462, 131 Cal.Rptr. 515.) On the other hand, an action for money damages alone will not support a lis pendens. (*Allied Eastern Financial v. Goheen Enterprises, supra*, 265 Cal.App.2d at pp. 133–134, 71 Cal.Rptr. 126.) *Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1145 [235 Cal.Rptr. 837, 840].

“In making [determination as to whether a real property claim is being asserted], the court must engage in a demurrer-like analysis. ‘Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim.’ (Code com., 14A West’s Ann.Code Civ. Proc., *supra*, foll. § 405.31, at p. 342.) Review ‘involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer.’ (Code com., 14A West’s Ann.Code Civ. Proc., *supra*, foll. § 405.30, at p. 337.) *Park 100 Investment Group II, LLC v. Ryan* (2009) 180 Cal.App.4th 795, 808–809 [103 Cal.Rptr.3d 218, 227]

Although Plaintiffs have asserted numerous causes of action, most do not qualify as a “real property claim.” Upon review of the Complaint as a whole, the Court finds that the causes of action for Attempted Wrongful Foreclosure and Declaratory Relief constitute real property claims.

Contingent upon the filing of a code-compliant Notice of Pendency of Action (Lis Pendens), Plaintiff’s request to record lis pendens is granted.

TENTATIVE RULING #6:

CONTINGENT UPON THE FILING OF A CODE-COMPLIANT NOTICE OF PENDENCY OF ACTION (LIS PENDENS), PLAINTIFF’S REQUEST IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.